

**TENTATIVE RULING**

**Case:** Iqbal v. Iqbal  
Case No. CV-2020-948

**Hearing Date:** January 30, 2026 Department Eleven 9:00 a.m.

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Parties are **DIRECTED TO APPEAR.**

## TENTATIVE RULING

**Case:** Meritage Homes of CA Inc. v. HBT of Winters Highlands, LLC  
**Case No. CV-2023-1612**  
**Hearing Date:** January 30, 2026 **Department Fourteen** **9:00 a.m.**

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Defendant HBT of Winters Highlands, LLC's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Defendant's request to strike plaintiff Meritage Homes of California, Inc.'s combined opposition is **DENIED**. (Reply to Opp., p. 5 [filed 10/16/25].) On October 23, 2025, the Court provided defendant with the opportunity to file an amended reply to plaintiff's combined opposition (filed October 10, 2025) based on the notice of errata (filed October 16, 2025.) (Minute Order [adopting tentative ruling, dated 10/23/25].) Defendant filed a response to sur-reply on December 5, 2025. Given the Court's October 23, 2025, ruling and defendant's December 5, 2025, filing, the Court denies defendant's request to strike plaintiff's combined opposition.

Plaintiff's objection to defendant's reply to its combined opposition is **SUSTAINED IN PART**. (Objection to Reply, p. 2 [filed 10/21/25].) The Court does not consider the new arguments raised by defendant in its reply brief. New arguments may not be raised for the first time in a reply brief. (*Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770 [an issue not adequately raised in moving papers is forfeited]; *High Sierra Rural Alliance v. County of Plumas* (2018) 29 Cal.App.5th 102, 112 fn. 2.) Otherwise, the Court considers the reply.

The Court declines to rule on plaintiff's objection to the declaration of Daniel A. King in reply to opposition, as the Court did not consider the challenged declaration or exhibits when ruling on these motions.

Plaintiffs' request for leave of court to file a sur-reply or supplemental briefing is **DENIED**. (Code Civ. Proc., § 1005, subd. (b) [only referring to moving papers, opposing papers, and reply papers]; Cal. Rules of Court, rule 3.1113(d) [same].) As the Court declines to consider new arguments raised by defendant in its reply brief, no further briefing from plaintiff is necessary.

The Court declines to consider the supplemental declaration of Daniel A. King filed on December 11, 2025, as it was filed after the reply deadline. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1113(d).)

### **Defendant's motion to strike plaintiff's notice of errata**

Defendant's motion to strike plaintiff's notice of errata filed and served on October 23, 2025, is **DENIED**. (Code Civ. Proc., § 436; Motion to Strike, pp. 2-3 [filed 12/5/25].) The Court finds that defendant fails to provide sufficient legal authority in support of its motion to strike. Code of Civil Procedure section 436 governs motions to strike for pleadings. Plaintiff's notice of errata is not a pleading. (Code Civ. Proc. § 422.10 ["[t]he pleadings allowed in civil actions are complaints, demurrers, answers, and cross-complaints"]; see also Code Civ. Proc., § 420 ["[t]he pleadings are the formal allegations by the parties of their respective claims and defenses, for the judgment of the Court."].)